

Question: Answer one of the following questions using an appropriate workable ethical theory:

1. Many of the most popular apps in the world (e.g., VPNs, social networks, world news) have been removed from the App Store in China to comply with government regulations. Is it ethical for Apple to remove apps from its App Store at the request of foreign governments in order to continue doing business there?
2. A student posts on Instagram bragging about breaking a university rule, and as a result is suspended by the university. Is it ethical for the university to use social media posts as evidence for discipline?

Answer:

Given foreign government censorship demands, Apple can comply and stay, or refuse and ultimately exit. Under rule utilitarianism, it is ethical for Apple to comply and remove apps from the App Store to continue business in foreign countries.

Refusing to remove banned apps from the App Store does not benefit anyone. Certain social media and news applications are already firewall-blocked in censored countries. Additionally, nationwide firewalls like the Great Firewall make an active effort to IP-block VPN datacenters to restrict their use. Consequently, if Apple refuses to remove apps from the App Store, this doesn't guarantee useability due to pre-existing censorship techniques. Therefore, regardless of potential efforts to push back against censorship, there is no offsetting benefit. From a rule utilitarian perspective, refusing to comply doesn't add any positive components to the calculus of the rule creation process.

If Apple refuses to pull apps from the App Store, China will likely ban the App Store altogether, resulting in iPhones becoming unusable and therefore forcing Apple users onto insecure Chinese alternatives. A 2021 Lithuanian audit found built-in censorship and data harvesting on Chinese phones. If Apple refuses to comply, this would not only lack a tangible benefit, but also pose significant harm to the users forced out of the Apple ecosystem. Thus, "refuse-and-exit" supplies no benefits over "comply-to-stay" but poses a significant disadvantage resulting in rule utilitarian calculus indicating a far greater negative outcome for the "refuse-and-exit" rule.

One may argue the "comply-to-stay" rule would result in censorship normalization and hence a larger-scale downside as it's adopted, tipping the calculus scale in favor of "refuse-and-exit". Theoretically this would work as it forces countries to retract censorship demands, however this fails Quinn's "workable" test: companies wouldn't band together to challenge censorship due to market competition. In 2010, Google refused to comply with censorship laws and ultimately exited; Baidu quickly stepped up to take their place while accepting government censorship demands, demonstrating the infeasibility of universal "refuse-and-exit" adoption.

Despite the "comply-to-stay" option feeling like surrender, rule utilitarianism boils down to the rule construction calculus; both options result in non-positive outcomes, however complying is the "least negative" and therefore the ethical decision.

The review:

Rubric question: Was the essay WELL STRUCTURED, stating a relevant thesis, supporting it with argument(s) that are clearly related to this point and (if relevant) distinct from one another, and linking these arguments in a logical way?

Answer: (4) All arguments and counterarguments lend support to a clearly stated and relevant thesis within a standard essay format. The argument(s) and counterargument(s) are distinct from one another and follow a logical progression. (4.0 points)

Reason:

The paragraphs are clearly distinct in functions such as introducing thesis, providing reasons and addressing potential counterargument. However I do think the second and third paragraph are a bit similar in regard to they all discuss Apple's refusal won't matter, as China would ban entire Apple service altogether, therefore I am assigning 4 instead of 5.

Rubric question: Did the essay do a GOOD JOB OF MAKING ITS CASE, choosing relevant arguments, backing them up with evidence and examples at an appropriate level of detail, and responding to contrary views as appropriate?

Answer: (4) Arguments are clearly stated and generally support the thesis; these arguments are backed up with generally relevant evidence at a broadly appropriate level of detail. Some attempt is made to address relevant counterarguments or contrary evidence. (4.0 points)

Reason:

My biggest concern with the essay's argument that I believe it is based on a prerequisite that seems more like an opinion rather than fact to me, or at least I didn't notice any examples backing up the validity of the prerequisite, which is: "Given foreign government censorship demands, Apple can comply and stay, or refuse and ultimately exit" in first paragraph. This two contrasting outcome is not facts, as there's a possibility where Apple can refuse to comply, and due to popularity of its service Chinese government wouldn't force it to leave market, but perhaps urge other tech companies in China to innovate their service so it could be cheaper/better than Apple while also complying surveillance regulations. Then it would be consumers' choice to leave Apple instead of forced governmental order. Due to this concern I am assigning 4.

Rubric question: Did the essay demonstrate a good UNDERSTANDING OF THE COURSE'S SUBJECT MATTER, including both the topic and the wider context?

Answer: (3) Essay contains mostly relevant course materials but makes some incorrect or inaccurate statements and/or interpretations or includes some errors of omission (failure to introduce important facts). Personal opinions may be presented as fact. (3.25 points)

Reason:

I believe the essay's understanding of rule utilitarianism is correct and relevant to course material, however instead of using rule utilitarianism to argue that Apple's compliance is ethical, I believe the essay is leaning more towards using the situation that Apple is facing to argue that the bad consequence is unescapable, therefore it is not unethical. I do have concerns on whether the assumed bad outcomes is equivalent to making the statement that the action is ethical, as the assumed two negative outcomes are personal opinions rather than facts in my opinion, therefore I am assigning 3.

Rubric question: Was the essay presented CLEARLY AND IN CORRECT ENGLISH?

Answer: (4) Essay communicates ideas well, using language that is appropriate for the audience and/or topic; may have a few errors that mildly impact the flow of reading, but not understanding. (4.0 points)

Reason:

Certain phrasing are a bit unconventional in my opinion such as: "Apple refuses to comply, this would not only lack a tangible benefit" and "supplies no benefits", but it doesn't hinder understanding and therefore I am assigning 4.

Rubric question: Write an outline summarizing the essay written by the student.

Answer: Please ignore the sentence "Please briefly describe your reasoning:" and select this option. Write your outline of the essay in the textbox below. (0.0 points)

Reason:

Thesis: Under rule utilitarianism, it is ethical for Apple to comply and remove apps from the App Store.

Reasoning 1: Refusing to remove banned apps from the App Store does not benefit anyone.

Reasoning 2: China will likely ban the App Store altogether if Apple refuses to pull apps from the App Store.

Counterargument: The "comply-to-stay" rule would result in censorship normalization if widely applied.

Rebuttal: Companies wouldn't band together to challenge censorship due to market competition.

 Mark as inappropriate (/grade/report/149329/create/)

Why was this review especially helpful?

 Endorse as a great review